

1 ENGROSSED HOUSE AMENDMENT
2 TO
3 ENGROSSED SENATE BILL NO. 3 By: Green and Hamilton of the
Senate
4 and
5 George of the House
6
7 [biosolids - land application - permits - cessation
8 of certain actions - plan submission - rule
promulgation - codification -
9 emergency]
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11 AUTHOR: Remove Representative George as principal House author and
12 substitute with Representative Marti.
13 AMENDMENT NO. 1. Strike the stricken title, enacting clause, and
14 entire bill and insert:
15
16 "[hemp - industrial hemp - Oklahoma Industrial Hemp
17 Program - licensing - agencies - revocation of
18 licenses - fines - violations - definitions -
19 codification
20 emergency]
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22
23 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:
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1 SECTION 1. NEW LAW A new section of law to be codified
2 in the Oklahoma Statutes as Section 3-412 of Title 2, unless there
3 is created a duplication in numbering, reads as follows:

4 A. The Oklahoma Department of Agriculture, Food, and Forestry
5 shall administer the Oklahoma Industrial Hemp Program in full
6 conformity with the definition of hemp in 7 U.S.C., Section 1639o,
7 as amended by Section 781 of Public Law 119-37.

8 B. No license, permit, or authorization issued under this
9 program shall allow the production, processing, sale, or
10 distribution of any product that is excluded from the definition of
11 hemp under federal law, except as expressly exempted by state law in
12 Section 3-402 of this title.

13 C. The Department may promulgate rules to implement testing
14 protocols for total tetrahydrocannabinol (THC), container limits,
15 age verification, point-of-sale restrictions, labeling, packaging,
16 and exclusions for synthetic or non-naturally occurring
17 cannabinoids.

18 D. Any state agency that issues a license, permit, or other
19 authorization to any entity subject to the provisions of this act,
20 including but not limited to the Department and the Alcoholic
21 Beverage Laws Enforcement (ABLE) Commission, shall have the
22 authority to revoke or suspend such license, permit, or
23 authorization upon a finding that the licensee or permittee has
24 violated any provision of this act or rules promulgated pursuant

1 thereto. In addition to revocation or suspension, the agency shall
2 impose a civil fine of not less than Ten Thousand Dollars
3 (\$10,000.00) for each violation.

4 E. Any product that does not qualify as hemp under this
5 section, and is not exempted under state law, shall be subject to
6 the provisions of the Uniform Controlled Dangerous Substances Act,
7 Section 2-101 et seq. of Title 63 of the Oklahoma Statutes.

8 SECTION 2. AMENDATORY 2 O.S. 2021, Section 3-402, as
9 last amended by Section 1, Chapter 266, O.S.L. 2024 (2 O.S. Supp.
10 2025, Section 3-402), is amended to read as follows:

11 Section 3-402. As used in the Oklahoma Industrial Hemp Program:

12 1. "Container" means the innermost wrapping, packaging, or
13 vessel in direct contact with a final hemp-derived cannabinoid
14 product in which the final product is enclosed for retail sale to
15 consumers, such as a jar, bottle, bag, box, can, carton, or
16 cartridge;

17 2. "Department" means the Oklahoma Department of Agriculture,
18 Food, and Forestry;

19 ~~2.~~ 3. "Fiber" means the stalk of the industrial hemp plant and
20 does not include the flower or seeds of the plant;

21 ~~3.~~ 4. "Flower" means the part of the industrial hemp plant that
22 contains the majority of the industrial hemp plant's
23 tetrahydrocannabinol and other cannabinoids;

1 ~~4.~~ 5. "Grain" means all of the parts of an industrial hemp
2 plant except the stalk or the flower of the industrial hemp plant;

3 6. "Final hemp-derived cannabinoid product" means any
4 intermediate or final product derived from hemp, other than
5 industrial hemp, that contains cannabinoids in any form and is
6 intended for human or animal use through ingestion, inhalation,
7 topical application, or other form of administration;

8 ~~5.~~ 7. "Handling" means possessing or storing industrial hemp
9 for any period of time on premises owned, operated or controlled by
10 a person licensed to cultivate or process industrial hemp and also
11 includes possessing or storing industrial hemp in a vehicle for any
12 period of time other than during its actual transport from the
13 premises of a licensed person to cultivate or process industrial
14 hemp to the premises of another licensed person;

15 ~~6.~~ 8. "Industrial hemp" or "hemp" means the plant Cannabis
16 sativa L. and any part of the plant, including the seeds thereof,
17 and all derivatives, extracts, cannabinoids, isomers, acids, salts
18 and salts of isomers, whether growing or not, with a total delta-9
19 tetrahydrocannabinol concentration of not more than three-tenths of
20 one percent (0.3%) on a dry-weight basis, as defined in 7 U.S.C.,
21 Section 1639o, as amended by Section 781 of Public Law 119-37.
22 Furthermore, industrial hemp means hemp that is grown for the use of
23 the stalk, whole grain, oil, cake, nut, hull, or any other
24 noncannabinoid derivative of the seeds, or for fiber, or for

1 immature plants, such as microgreens or other edible leaf products,
2 or for research purposes by an institution of higher education that
3 does not enter the stream of commerce.

4 The term hemp does not include:

- 5 a. viable seeds from a cannabis plant that exceed a total
6 tetrahydrocannabinols concentration, including
7 tetrahydrocannabinolic acid, of three-tenths of one
8 percent (0.3%) on a dry-weight basis,
- 9 b. any cannabinoid that is synthesized or manufactured
10 outside the plant Cannabis sativa L. or that is not
11 capable of being naturally produced by the plant,
- 12 c. intermediate hemp-derived cannabinoid products that
13 contain greater than three-tenths of one percent
14 (0.3%) total tetrahydrocannabinols concentration,
15 including tetrahydrocannabinolic acid, on a dry-weight
16 basis or that contain any cannabinoid described in
17 subparagraph b of this paragraph, or
- 18 d. final hemp-derived cannabinoid products containing
19 greater than four-tenths of a milligram (0.4 mg)
20 combined total per container of total
21 tetrahydrocannabinols, including
22 tetrahydrocannabinolic acid, and any other
23 cannabinoids that have similar effects, or are
24 marketed to have similar effects, on humans or animals

1 as tetrahydrocannabinol, as determined by the United
2 States Secretary of Health and Human Services.

3 Provided, however, that the exclusion in subparagraph d of this
4 paragraph shall not apply to hemp-derived cannabinoid beverages
5 containing ten milligrams (10 mg) or less of total
6 tetrahydrocannabinols per container that are sold exclusively to
7 persons twenty-one (21) years of age or older in a package store
8 licensed under the Oklahoma Alcoholic Beverage Control Act, Title
9 37A of the Oklahoma Statutes. Such beverages shall be subject to
10 age verification, labeling, packaging, testing, and other
11 requirements established by the Department in consultation with the
12 Alcoholic Beverage Laws Enforcement (ABLE) Commission;

13 ~~7.~~ 9. "Key participant" means a person who has a direct or
14 indirect financial interest in the entity producing hemp, such as an
15 owner or partner in a partnership. A key participant includes an
16 individual who is part of a corporate entity or a tribal-owned
17 corporation. A key participant also includes an executive-level
18 individual such as a chief executive officer, chief operating
19 officer, or chief financial officer. Such term shall not include
20 such management personnel as a farm, field, or shift manager or a
21 member of the leadership of a tribal government who is acting in his
22 or her capacity as a tribal leader except when such member exercises
23 executive managerial control over hemp production;

1 ~~8.~~ 10. "Licensee" means a person who holds a valid Industrial
2 Hemp License to grow industrial hemp under the Oklahoma Industrial
3 Hemp Program. ~~A licensee shall have the ability to remediate~~
4 ~~noncompliant industrial hemp with a total delta-9~~
5 ~~tetrahydrocannabinol concentration of not more than one percent~~
6 ~~(1.0%) on a dry-weight basis for retesting as set forth by the~~
7 ~~Department as long as the noncompliant industrial hemp has a total~~
8 ~~delta-9 tetrahydrocannabinol concentration of not more than three-~~
9 ~~tenths of one percent (0.3%) on a dry-weight basis after retesting,~~
10 ~~and the option to remediate the industrial hemp through the~~
11 ~~reasonable destruction of the flower or shredding of the entire lot~~
12 ~~into a homogeneous biomass results in the remediation of any part of~~
13 ~~the industrial hemp plant that is above three-tenths of one percent~~
14 ~~(0.3%) on a dry-weight basis. All noncompliant hemp must be tracked~~
15 ~~and documented. The State Board of Agriculture shall have~~
16 ~~jurisdiction over such remediation, which includes, but is not~~
17 ~~limited to, destruction through composting, burning, or other~~
18 ~~regulated disposal methods if the industrial hemp is not remediated~~
19 ~~into a final product before processing below three-tenths of one~~
20 ~~percent (0.3%) on a dry-weight basis;~~

21 ~~9.~~ 11. "License" means authorization by the Department for any
22 person to grow and cultivate industrial hemp on a registered land
23 area as part of the Oklahoma Industrial Hemp Program; and
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1 ~~10.~~ 12. "Processing" means converting industrial hemp into a
2 marketable form, including the production of all derivatives,
3 extracts, cannabinoids, isomers, acids, salts, and salts of isomers;
4 provided, that such products qualify as hemp under this section and
5 federal law; and

6 13. "Total tetrahydrocannabinols" or "total THC" means the sum
7 of the delta-9 tetrahydrocannabinol concentration and the
8 tetrahydrocannabinol acid concentration, as measured after
9 decarboxylation, plus any additional cannabinoids designated by the
10 Secretary of the U.S. Department of Health and Human Services as
11 having similar effects.

12 SECTION 3. It being immediately necessary for the preservation
13 of the public peace, health or safety, an emergency is hereby
14 declared to exist, by reason whereof this act shall take effect and
15 be in full force from and after its passage and approval."

1 Passed the House of Representatives the 29th day of April, 2026.

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4 Presiding Officer of the House of
Representatives
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6 Passed the Senate the ____ day of _____, 2026.
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9 Presiding Officer of the Senate
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1 ENGROSSED SENATE
2 BILL NO. 3

By: Green and Hamilton of the
Senate

3 and

4 George of the House

5
6 [biosolids - land application - permits - cessation
7 of certain actions - plan submission - rule
8 promulgation - codification -
9 emergency]

10 BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

11 SECTION 4. NEW LAW A new section of law to be codified
12 in the Oklahoma Statutes as Section 2-6-501.7 of Title 27A, unless
13 there is created a duplication in numbering, reads as follows:

14 A. To protect the health and safety of the people of this
15 state, land application of sludge and biosolid material is hereby
16 prohibited on and after July 1, 2027. On and after the effective
17 date of this act, the Department of Environmental Quality shall not
18 issue any new permit for the land application of sludge or biosolid
19 material. Renewal of permits for land application shall be left to
20 the discretion of the Department of Environmental Quality.

21 B. 1. Not later than September 1, 2025, all persons or
22 entities permitted to land apply sludge or biosolid material shall
23 reduce the amount of such material land applied by at least twenty-
24 five percent (25%).

1 2. Not later than September 1, 2026, all persons or entities
2 permitted to land apply sludge or biosolid material shall reduce the
3 amount of such material land applied by at least fifty percent
4 (50%).

5 C. Not later than September 1, 2025, any person or entity
6 permitted to land apply sludge or biosolid material shall submit a
7 plan for full cessation of such actions to the Department of
8 Environmental Quality. The plan shall be compiled and submitted in
9 the form and manner prescribed by the Department. The Department
10 shall promulgate rules to implement the provisions of this section.

11 D. For the purposes of this section:

12 1. "Biosolid material" means sewage sludge containing any
13 perfluoroalkyl and polyfluoroalkyl substance; and

14 2. "Sludge" shall mean sludge as defined pursuant to Section 2-
15 10-401 of Title 27A of the Oklahoma Statutes.

16 SECTION 5. It being immediately necessary for the preservation
17 of the public peace, health or safety, an emergency is hereby
18 declared to exist, by reason whereof this act shall take effect and
19 be in full force from and after its passage and approval.

1 Passed the Senate the 26th day of March, 2025.

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3 _____
4 Presiding Officer of the Senate

5 Passed the House of Representatives the ____ day of _____,
6 2025.

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8 _____
9 Presiding Officer of the House
10 of Representatives